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Select Committee Report: no let-up in the Government's war on nature

18 October 2024

The Environment Select Committee has reported back to Parliament (see [here](#)) on the Fast-track Approvals Bill. Unsurprisingly, there are majority and minority reports with the Government members following Ministerial directions and largely ignoring the 27,000 submissions, mostly opposed to the Bill.

"The report confirms that final decisions on approvals will be in the hands of the Expert Panels and not Ministers. That was expected and is a good change to the Bill," said EDS CEO Gary Taylor.

"However, the three key amendments needed to make this Bill less bad have not materialised and that is deeply concerning.

"The first is that purpose and decision-making criteria remain heavily weighted against the environment, meaning that the Expert Panel process will largely be a rubber-stamping

exercise. So, a new coal mine that will lead to increased greenhouse gas emissions, forest and wetland clearance and harm to indigenous wildlife would likely get consented.

"The second is that legal standing to make submissions to Expert Panels remains heavily circumscribed with local communities and environmental groups cut out of the process by default. This is perverse, considering that the Government is providing offshore companies with a privileged track for approvals while preventing New Zealanders from having a say.

"The third is that the Select Committee has not engaged in considering the Second Schedule projects and the method by which they are to be included in the legislation: via an Amendment Paper at a later reading of the Bill. There has been ample commentary on the questionable merits of many of the listed projects and on the negative constitutional implications of that approach.

"There are other changes that have been recommended including correcting numerous drafting errors and ambiguities. These will need careful analysis. But overall, the Select Committee report is extremely disappointing and shows it is in thrall to Ministers. The minority reports reveal more insights and that if enacted there is likely to be support for repeal when the government changes.

"Finally let me reassert that EDS is opposed to this Bill. We have workable fast-track law in place already and the review of the Resource Management Act is the place to consider further evolution of that law. It has been quite misleading for Minister Bishop and the Prime Minister to be saying in the House earlier this week that EDS supports the Bill. Taking selective comments out of context like they have done is both annoying and wrong," Mr Taylor concluded.

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